

GUARANTY OF LEASE

THIS GUARANTY OF LEASE made this 15th day of June 2026 by **ELI MORDECHAI**, presently residing at **2439 KUSER ROAD, HAMILTON, NJ 08690**.

WITNESSETH

WHEREAS a certain Lease, dated this 15th day of June 2026, herewith will be executed by and between **MARION STREET 114 LLC**, therein and herein referred to as "Landlord" and **CHEZ ALICE WESTFIELD LLC** herein referred to as "Tenant", covering certain commercial premises located at 114 Central Ave (also known as 102-104 Quimby St), Westfield, NJ 07090.

WHEREAS, the Landlord under said Lease requires as a condition to its execution of said Lease that Guarantor unconditionally and absolutely guarantee the full and faithful performance of the obligations of the Tenant under said Lease; and

WHEREAS, the undersigned is desirous that Landlord enter into said Lease with Tenant,

NOW THEREFORE, in consideration of the execution of said Lease by Landlord, Guarantor hereby unconditionally guarantees the full performance of each and all terms, covenants, and conditions of said Lease to be kept and performed by said Tenant, including the payment of all rentals and other charges to accrue thereunder, subject to the duration provisions set forth below. Guarantor further agrees as follows:

1. Duration of Guaranty.

- a. **Initial Guaranty Period.** Guarantor unconditionally guarantees all of Tenant's obligations under the Lease for a period of twenty-four (24) months commencing on the Rent Commencement Date (the "Initial Guaranty Period"), regardless of whether Tenant is in occupancy or the Lease has been terminated.
- b. **Rolling Guaranty Period.** Following the expiration of the Initial Guaranty Period, Guarantor's liability shall continue on a rolling twelve (12) month basis. At any point during the remaining Term, Guarantor's obligation shall equal the lessor of: (i) twelve (12) months of the then-current Base Rent, Additional Rent, and all other charges under the Lease, or (ii) the actual remaining months owed by Tenant of the then-current Base Rent, Additional Rent, and all other charges under the Lease.
- c. **Early Termination or Default.** If the Lease is terminated for any reason prior to the expiration of the Initial Guaranty Period, Guarantor's liability shall not be less than the total Base Rent, Additional Rent, and all other charges that would have been payable through the end of the Initial Guaranty Period. If the Lease is terminated after the Initial Guaranty Period, Guarantor's liability shall not be less than twelve (12) months of the then-current Base Rent, Additional Rent, and all other charges, in addition to any accrued and unpaid amounts as of the date of termination.
- d. **No Release.** Guarantor shall not be released from this Guaranty until all obligations covered hereunder have been fully satisfied and the applicable guaranty period has expired without default.

2. This Guaranty is designed to be comprehensive and enduring, ensuring the full and faithful performance of all Tenant's obligations. It will continue to be fully effective for the Landlord, covering all commitments, even if there are future changes to the Lease, such as extensions, modifications, or renewals. This also applies if the Tenant assigns the Lease, sublets the premises, or undergoes changes in its business structure or ownership. Should the Lease be renewed, extended, or if the Tenant remains in the premises beyond the agreed term, the Guarantor's obligations will likewise extend to these periods and any resulting lease terms. Furthermore, this Guaranty will remain unchanged and fully enforceable even in the event of the Tenant's financial distress, including bankruptcy, reorganization, or dissolution, or if the Lease is disaffirmed or rejected in such proceedings. The Guarantor acknowledges that these events are within the broad scope of this Guaranty and will not diminish their liability, and that specific notice for each such occurrence is not required to maintain this Guaranty's effectiveness. For practical purposes, the Guarantor agrees that the Tenant may act as its agent for receiving official notices related to this Guaranty
3. Landlord may, without notice to Guarantor, assign this Guaranty in whole or in part, and no assignment or transfer of the Lease shall extinguish or diminish the liability of Guarantor.
4. This Guaranty functions as a direct assurance of both payment and performance, rather than just a last resort. Your liability as Guarantor is immediate and unconditional, meaning the Landlord can, at their discretion, seek performance or payment directly from you without first pursuing legal action against the Tenant, obtaining a judgment, or exhausting other remedies or security they

may hold. You acknowledge and waive any right to demand that the Landlord first take action against the Tenant, or utilize any security or other credit. This Guaranty will remain fully in effect until all Tenant obligations are completely satisfied. Furthermore, you agree to waive any defense that might arise due to the Tenant's own circumstances, such as a disability, other personal defense, or the cessation of their liability for any reason, or any other typical suretyship defense.

5. Guarantor shall reimburse Landlord for its reasonable attorney's fees and all costs and expenses incurred in any collection, attempted collection, negotiation, or enforcement of the obligations guaranteed hereunder or in enforcing this Guaranty, provided Landlord is the prevailing party in any such action.
6. Guarantor waives notice of any demand by Landlord, notice of any default by Tenant in the payment of rent or any other amount under the Lease, notice of acceptance of this Guaranty, presentment, demand for performance, protest, and all other notices of any kind to which Guarantor might otherwise be entitled.
7. The liability of Guarantor is coextensive with that of Tenant, joint and several, and legal action may be brought against Guarantor and carried to final judgment with or without making Tenant a party thereto.
8. This Guaranty and all terms hereof shall be binding on Guarantor and its heirs, successors, assigns, and legal representatives.
9. Guarantor hereby subordinates all existing or future indebtedness of Tenant to Guarantor to the obligations owed to Landlord under the Lease and this Guaranty. Guarantor shall not exercise any right of subrogation, reimbursement, or contribution against Tenant until all obligations under the Lease have been fully satisfied; however, if Guarantor makes a payment to Landlord to cure a specific Tenant default, Guarantor shall be immediately entitled to seek reimbursement from Tenant for that specific amount.
10. Upon Landlord's written request, but not more than once per calendar year, Guarantor shall deliver to Landlord current financial statements certified as true and correct. Failure to timely provide such information shall constitute a default under this Guaranty.
11. The Lease and this Guaranty shall be governed by, interpreted under, and enforced in accordance with the laws of the State of New Jersey. Guarantor consents to the exclusive jurisdiction of the courts of the State of New Jersey, County of Union, for any action arising hereunder.
12. The use of the singular herein shall include the plural. The obligations of two or more guarantors shall be joint and several. The terms and provisions of this Guaranty shall be binding upon and inure to the benefit of the respective successors and assigns of the parties herein named.

IN WITNESS WHEREOF, the undersigned has caused this Guaranty to be executed as of the date set forth on page one of this Guaranty of Lease.

Eli Mordechai, Ph.D. Guarantor

STATE OF NEW JERSEY,
COUNTY OF Mercer,

I CERTIFY that on this 15th day of June, 2026 by Eli Mordechai, personally came before me and acknowledged under oath, to my satisfaction, that he is the person named above and personally signed this document; and signed, sealed and delivered this document as his voluntary act and deed for the uses and purposes therein expressed.

Natalie Okul
NOTARY PUBLIC

